



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00080 Gysel Whitney (Whitney Ranch, 4th Filing) Zone Change
Date: April 12, 2021

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 4/12/2021
- Public Services Committee 4/20/2021
- Second reading 4/26/2021
- Public Services Committee 5/4/2021
- Third and final reading 5/10/2021

Related Items:

- Gysel Whitney (Whitney Ranch, 4th Filing) Annexation (UDC-21-00079)

Planning Commission Recommendation:

The Planning Commission heard this item at their April 5, 2021 meeting and **unanimously** recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-2 AGRICULTURAL TO AG AGRICULTURAL FOR LAND LOCATED NORTHWEST OF AND ADJACENT TO THE INTERSECTION OF DELL RANGE BOULEVARD AND WHITNEY ROAD."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment ("zone change") for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on April 5, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as:

A parcel of land located in the southeast one-quarter of Section 23, Township 14 North Range 66 West of the 6th Principal Meridian.

Considering the east line of said southeast quarter of Section 23 being monumented by a found iron rod at the east one quarter corner and a found aluminum cap at the southeast corner of Section 23. Said line bears S00°26'28"W at a distance of 2,644.52 feet with all bearings hereon relative thereto.

Commencing at the east quarter corner of said Section 23, thence S00°26'28"W at a distance of 1,106.49 feet along the east line of the southeast quarter; thence leaving said east line of said southeast quarter N89°33'14"W at a distance of 40.00 feet to a point on the westerly right of way line of Whitney Road and the true point of beginning. Thence continuing along said westerly right of way line S00°26'28"W at a distance of 1498.65 feet to a point on the northerly right of way line of Dell Range Boulevard; thence along said northerly right of way S89°33'10"W at a distance of 2100.65 feet; thence leaving said northerly right of way N00°26'28"E at a distance of 1531.40 feet; thence S89°33'14"E at a distance of 2100.40 feet to the true point of beginning.

is hereby changed to AG Agricultural.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated Gysel Whitney, LLC Annexation Map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



(Phone) 307-637-6282 (Fax) 307-637-6366

STAFF REPORT

RECOMMENDED MOTION:

Move to **approve** the rezoning of a portion of the southeast quarter of Section 23, Township 14 North, Range 66 West, of the 6th P.M., Laramie County, Wyoming from County A-2 Agricultural to Agricultural as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne
- East Dell Range Blvd / US 30 Corridor Study
- Whitney Road Corridor Plan

BACKGROUND:

This zone change application proposes changing the zoning from County A-2 Agricultural to AG Agricultural for 73.1 acres of mostly vacant land in concert with an annexation. The land is anticipated to go through a subsequent zone change to be developed as a single-unit residential, multi-unit residential, and commercial uses, with associated streets and open areas.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential and Mixed-Use Commercial	County A-2	Undeveloped, one residence
North	Urban Residential	County A-2	Undeveloped
South	Urban Residential	County AR	Low density Single-family Residential
East	Urban Residential and Mixed-Use Commercial	County LR, County MU, County AR	Rural Residential, Undeveloped
West	Urban Residential	MR, County AR	Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary and existing infrastructure exists in the neighborhoods to the west. There are also opportunities to tie into

infrastructure located less than ½ mile to the south. Development will require infrastructure extensions and improvements.

The Future Land Use Designation for this property is Urban Residential and Mixed-use Commercial on the Future Land Use Map updated by Connect 2045. The optimal zoning for the proposed future land use designation is any of the residential zones for the Urban Residential areas, and Mixed-use Business Emphasis for the Mixed-Use Commercial areas. Commercial and residential zoning may also be appropriate in the Mixed-Use area.

While the proposed AG zone is not consistent with the land uses identified by the Future Land Use Map, the AG zone is the rough equivalent of the current County zone and would not have an adverse effect on the potential for the property to develop in accordance with the plans and policies of the comprehensive plan in the future.

The proposed zone change **complies** with review criterion 1.

- 2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)**

The existing zoning to the south and east is mostly AR and outside of City limits. The property to the north is zoned A-2 Agricultural, and is also outside of City limits. The current zoning is A-2, and the proposed AG zone is the City zone most analogous to the current county zone.

The future land uses anticipated by the Comprehensive Plan and other official plans for this area anticipate higher-intensity, urban-style uses. While the proposed AG zone is not consistent with the Future Land Use Map, the AG zone is intended to be able to be used as a ‘holding zone’ until future development occurs, and the AG zone is consistent with existing County zoning in the area.

The proposed zone change for the subject property **complies** with review criterion 2.

- 3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)**

The current County A-2 zone allows limited development options and is intended for low-intensity uses. Generally, parcels in this zone district are not expected to connect to urban services. The proposed AG zone is the City zone most analogous to the current County zone and also only allows limited development options. However, in order for land uses and development to be effectively managed when annexed to the City, a City zone is required.

The proposed zone change **complies** with review criterion 3.

- 4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)**

The standards of Article 4 have limited applicability to the proposed AG zone, as AG zoned land is highly limited in allowed uses and is intended to have limited infrastructure improvements, if

any. By zoning the land as AG, the property would likely remain undeveloped until future zoning, subdivision, and other development actions occur. The standards of Article 4 would be required to be met with those future development actions.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The AG zone is intended to develop with primarily agricultural uses or to leave land in a natural state. This zone prohibits most of the typical urban-style uses. The AG zone is applicable to areas where significant natural lands or open spaces are to be protected, or areas designated Agriculture/Rural or Rural Residential by the Future Land Use Map. The AG zone is also applicable as an interim or holding zone for areas that may be further developed in the long term, but where minimal development activity in the interim is acceptable and will not prematurely establish development patterns.

This property is anticipated to develop with urban-style uses in the future. However, the AG zone is applicable as a holding zone and is intended to leave the land in an undeveloped state – which would allow future rezoning and development of the property when development is appropriate.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the proposed zone change in concert with an annexation. The proposed zoning is the zone most similar to the existing zoning on the property and on surrounding properties. Many of the surrounding properties are outside of City limits and are zoned with agricultural or rural residential zones.

While a preliminary plat has been approved on this land, the uses and subdivision outlined by the Preliminary Plat would require more urban-style zoning. No specific development is proposed in concert with the rezoning to AG. The intent of the zone change to AG is to give the land a City zone when annexed.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is in an area covered by the following plans:

- PlanCheyenne
- East Dell Range Blvd / US 30 Corridor Study
- Whitney Road Corridor Plan

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

The East Dell Range Blvd / US 30 Corridor Study... anticipates this area to develop with urban-style commercial and residential uses. The AG zone would not allow development of the nature anticipated by this plan, but as the AG zone is also suitable as a holding zone while other development actions are pending, the zoning of this property to AG upon annexation would not create an undue influence for the future development / redevelopment of the property.

The Whitney Road Corridor Plan also anticipates this area to develop with urban-style commercial and residential uses – but, once again, the AG zone can work as a holding zone until development proposals are solidified.

STAFF REVIEW:

Through the review process, no issues were identified by staff, and no comments regarding the proposed zone change were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The zoning map amendment application is proposed in concert with an annexation, and the AG zone is the zone most analogous to the current County zone for the subject property. While the property is anticipated to develop with urban-style uses in the future, the AG zone is applicable as a holding zone and is consistent with the current zoning of surrounding properties. Staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

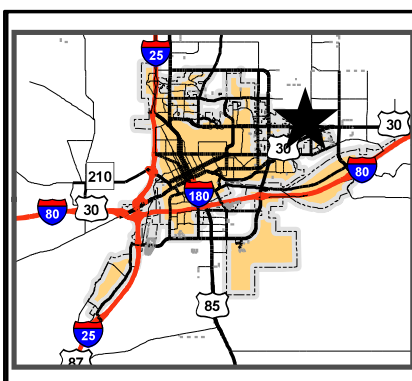
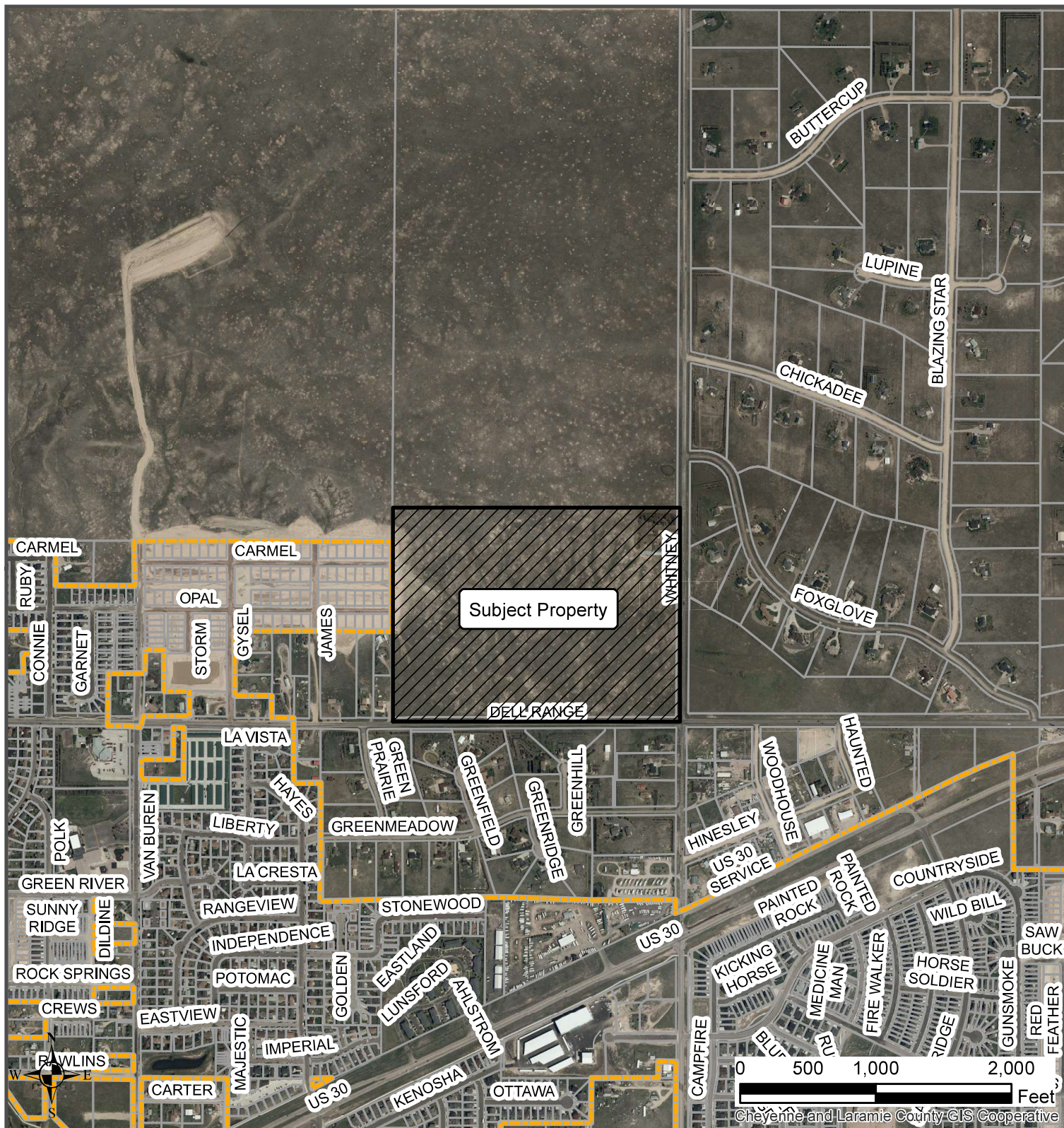
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from County A-2 to AG.

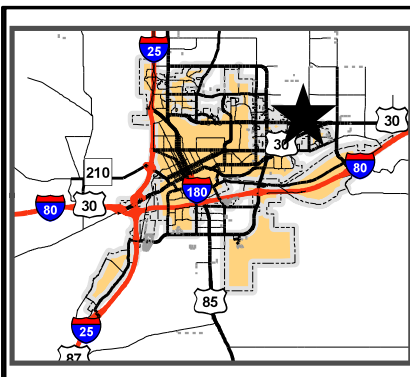
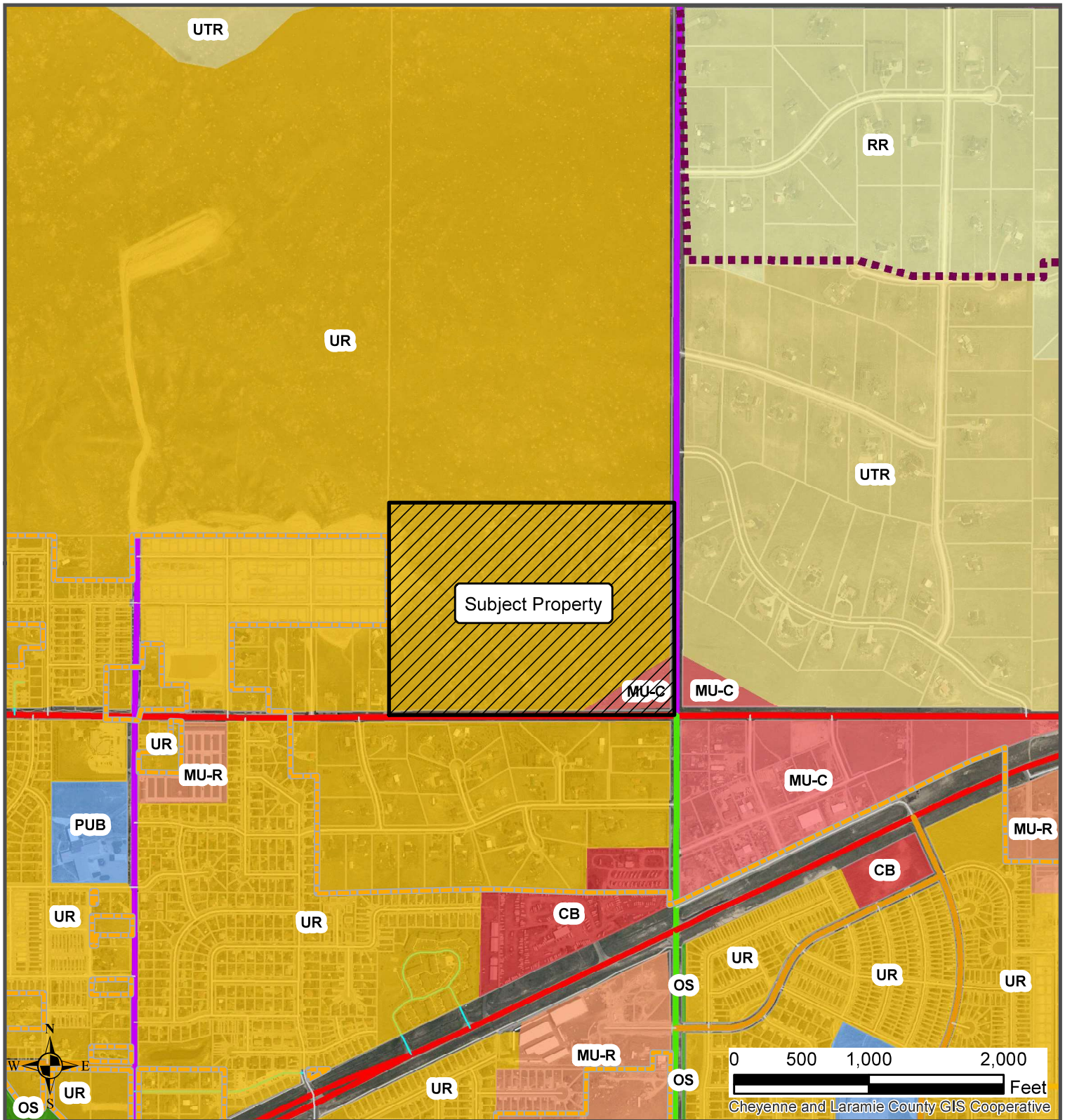
ATTACHMENTS:

1. Aerial Map
2. Future Land Use Plan Map
3. Current Zoning Map
4. Master Application
5. Applicant Provided Zone Change Map



Attachment 1:
Aerial Map
UDC-21-00080

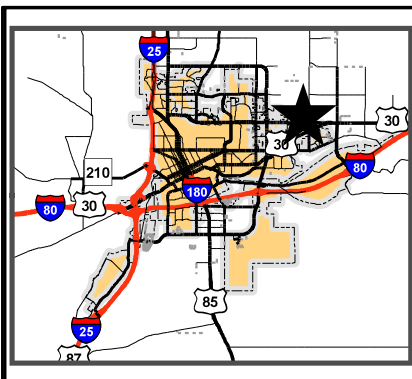
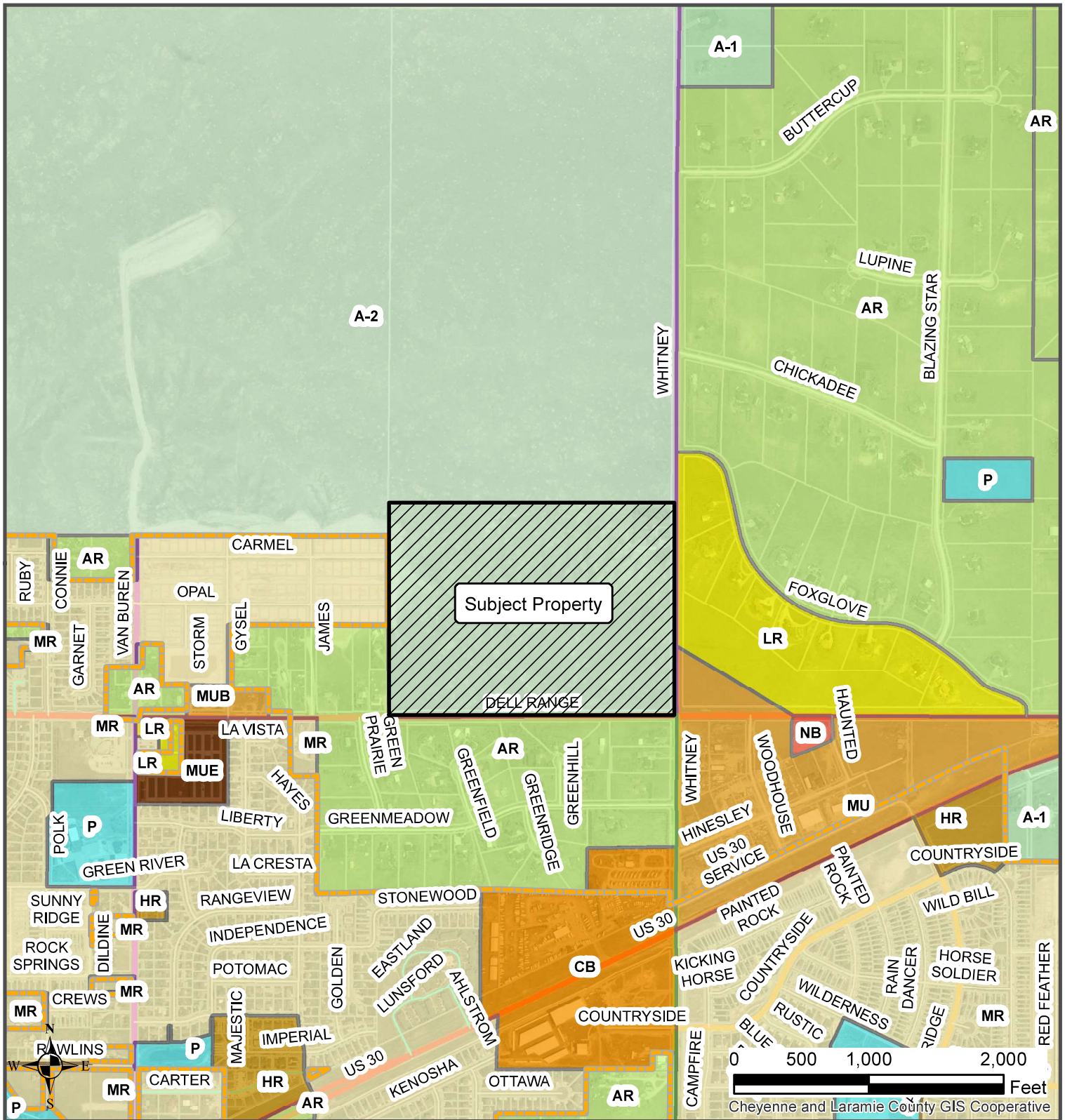
This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.



Attachment 2: Future Land Use UDC-21-00080

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Legend



Attachment 3: Zoning Map UDC-21-00080

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Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Private		NB / Neighborhood Business
	Platted not built		MU / Mixed Use - County
	HR / High Density Residential		MUB / Mixed Use Business Emphasis
	MR / Medium Density Residential		MUE / Mixed Use Employment Emphasis
	LR / Low Density Residential		HI / Heavy Industrial
	NR-2 / Neighborhood Residential - Med. Density		LI / Light Industrial
	NR-3 / Neighborhood Residential - High Density		P / Public
	AR / Agricultural Residential		AD / Airport District
			PUD / Planned Unit Development
			X / Exempt

Cheyenne and Laramie County GIS Cooperative

Planning and Development: Zoning Map Amendment Application

Submission date: **3 March 2021, 4:33PM**

Receipt number: **9**

Related form version: **9**

General Information

Applicant Name: **Whitney Ranch LLC, Joe Patterson**

Applicant Address: **6636 Cedar Ave, S Suite 300**

Applicant City: **Minneapolis**

Applicant State: **MN**

Applicant Zip Code: **55423**

Applicant Phone: **3072201772**

Applicant Email: **joe@guardiancompanies.com**

Representative Name: **AVI, Brad Emmons**

Representative Address: **1103 Old Town Lane #101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **+13076376017**

Representative Email: **emmons@avipc.com**

Owner Name: **Gysel Whitney LLC**

Owner Address: **PO Box 72**

Owner City:	Albin
Owner State:	WY
Owner Zip Code:	82050
Owner Phone:	3072870680
Owner Email:	bholgerson@rtconnect.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	loa_gysel_whitney_001.pdf
Project Location (Street Address or General Location):	NW corner of Dell Range and Whitney Road
Assessor's Parcel ID number(s)	Portion of R0018369
Total Project Area	Enter total acreage/square feet
Existing Zoning	Other: County A-2
Requested Zoning	AG - Agricultural

Application-Specific Questions

Written Statement	Just starting the annexation process to get property into the City jurisdiction. Additional submittals will be in late march or april
Zoning Map	4258 WHITNEY 4TH ZONE CHANGE.pdf
Notification Letter	Whitney Ranch AG neighbor notification_.docx AG zone change notification.pdf
Supporting Documents / Information	4258 PRELIM PLAT UPDATE 8-18-20.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

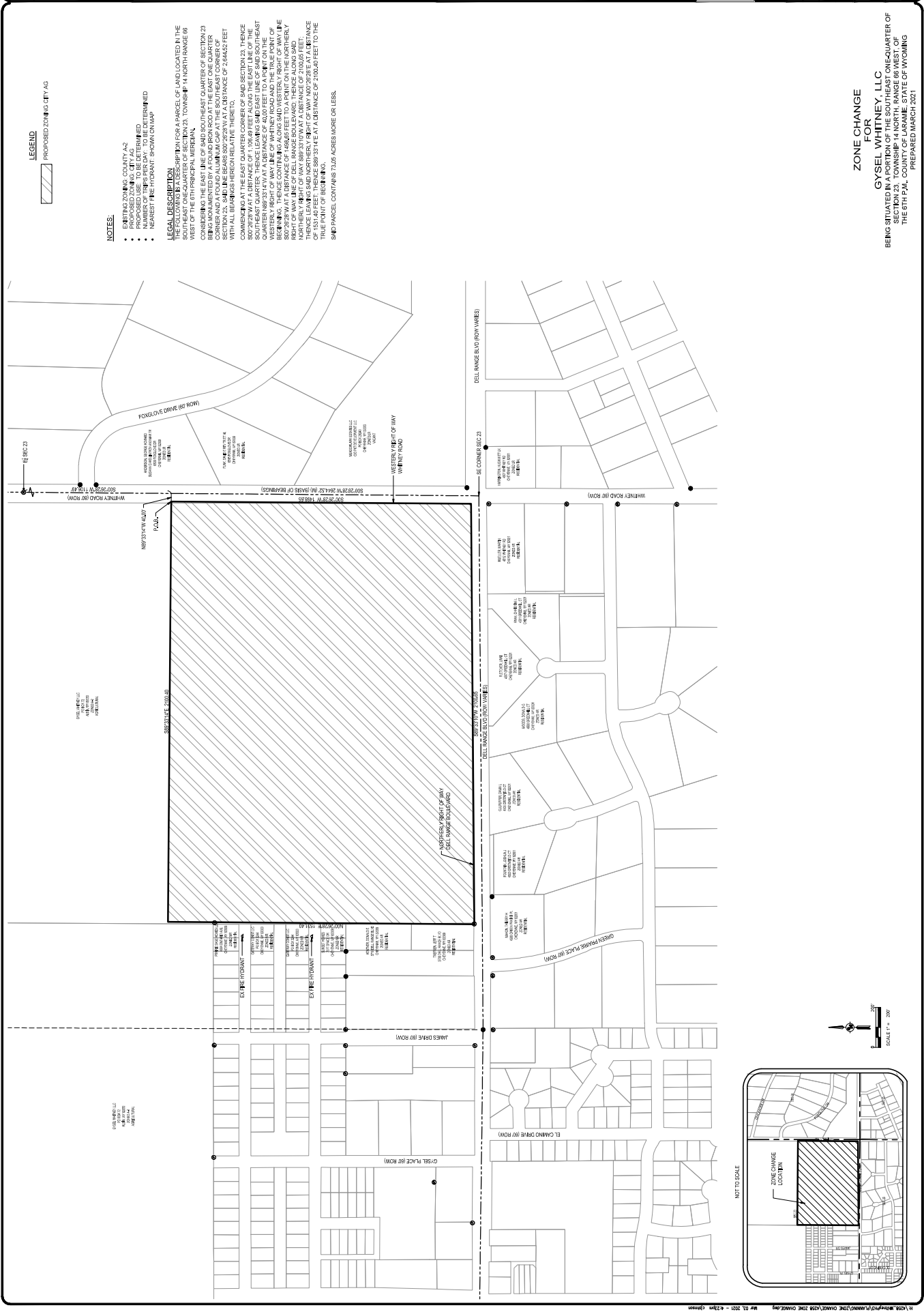
Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com



NOTES:

- EXISTING ZONING: COUNTY A-2
- PROPOSED ZONING: CITY AG
- PROPOSED USE: TO BE DETERMINED
- EXISTING USE: TO BE DETERMINED
- NEAREST FIRE HYDRANT: SHOWN ON MAP

LEGAL DESCRIPTION:

DESCRIPTION FOR A PARCEL OF LAND LOCATED IN THE SOUTHEAST ONE-QUARTER OF SECTION 23, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, CONSIDERING THE EAST LINE OF SAID SOUTHEAST QUARTER OF SECTION 23, CORNER AND A FOUND ALUMINUM CAP AT THE SOUTHEAST CORNER OF SECTION 23, 800' 29" 28" W AT A DISTANCE OF 2644.52 FEET COMMENCING AT THE EAST QUARTER CORNER OF SAID SECTION 23, THENCE 800' 29" 28" W AT A DISTANCE OF 1,106.49 FEET ALONG THE EAST LINE OF THE SOUTHEAST QUARTER OF SECTION 23, THENCE S80° 29' 28" W ALONG THE WESTERLY RIGHT OF WAY LINE OF WHITNEY ROAD AND THE TRUE POINT OF BEGINNING CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE TO THE RIGHT OF WAY LINE OF DEL RANGE BOULEVARD, THENCE ALONG SAID RIGHT OF WAY LINE OF DEL RANGE BOULEVARD, THENCE S88° 33' 14" W AT A DISTANCE OF 2102.60 FEET TO THE TRUE POINT OF BEGINNING.

SAID PARCEL CONTAINS 7.05 ACRES MORE OR LESS.

GYSEL WHITNEY, LLC
6636 CEDAR AVE S STE 300
RICHFIELD, MN 55423
307-634-2222

LEGEND

PROPOSED ZONING CITY AG

NOTES:

EXISTING ZONING: COUNTY A-2

PROPOSED ZONING: CITY AG

PROPOSED USE: TO BE DETERMINED

EXISTING USE: TO BE DETERMINED

NEAREST FIRE HYDRANT: SHOWN ON MAP

LEGAL DESCRIPTION:

DESCRIPTION FOR A PARCEL OF LAND LOCATED IN THE SOUTHEAST ONE-QUARTER OF SECTION 23, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, CONSIDERING THE EAST LINE OF SAID SOUTHEAST QUARTER OF SECTION 23, CORNER AND A FOUND ALUMINUM CAP AT THE SOUTHEAST CORNER OF SECTION 23, 800' 29" 28" W AT A DISTANCE OF 2644.52 FEET COMMENCING AT THE EAST QUARTER CORNER OF SAID SECTION 23, THENCE 800' 29" 28" W AT A DISTANCE OF 1,106.49 FEET ALONG THE EAST LINE OF THE SOUTHEAST QUARTER OF SECTION 23, THENCE S80° 29' 28" W ALONG THE WESTERLY RIGHT OF WAY LINE OF WHITNEY ROAD AND THE TRUE POINT OF BEGINNING CONTINUING ALONG SAID WESTERLY RIGHT OF WAY LINE TO THE RIGHT OF WAY LINE OF DEL RANGE BOULEVARD, THENCE ALONG SAID RIGHT OF WAY LINE OF DEL RANGE BOULEVARD, THENCE S88° 33' 14" W AT A DISTANCE OF 2102.60 FEET TO THE TRUE POINT OF BEGINNING.

SAID PARCEL CONTAINS 7.05 ACRES MORE OR LESS.

ZONE CHANGE LOCATION

NOT TO SCALE

SCALE: 1" = 100'

N

ZONE CHANGE FOR GYSEL WHITNEY, LLC BEING SITUATED IN TOWNSHIP 14 NORTH, RANGE 66 WEST OF SECTION 23, TOWNSHIP 14 NORTH, RANGE 66 WEST OF THE 6TH P.M., COUNTY OF LARAMIE, STATE OF WYOMING PREPARED MARCH 2021